

Address:	The Roundhouse Chalk Farm Road London NW1 8EH		9
Application Number:	2014/0853/P	Officer: Seonaid Carr	
Ward:	Camden Town with Primrose Hill		
Date Received:	31/01/2014		
Proposal: Erection of a five storey building, with office use at first to fourth levels (B1(a)) and ancillary storage at ground for use in connection with the Roundhouse together with the provision of 14 cycle parking spaces.			
Drawing Numbers: USM RAB 000 Rev R1, USM RAB 001, USM RAB 002, USM RAB 005, USM RAB 006, USM RAB 007, USM RAB 008, USM RAB 009, USM RAB 010, USM RAB 011, USM RAB 012, USM RAB 014, USM RAB 015, Energy Statement, Daylight and Sunlight Assessment by Keeping Blue dated January 2014, BREEAM Pre-Assessment by Carbon Plan dated January 2014 and Transport Statement by Paul Mew Associates dated January 2014.			
RECOMMENDATION SUMMARY: Grant conditional permission subject to a Section 106 legal agreement			
Applicant:		Agent:	
The Roundhouse Chalk Farm Road London NW1 8EH		Urban Space (Container City) Ltd Trinity Buoy Wharf 64 Orchard Place London E14 0JW	

ANALYSIS INFORMATION

Land Use Details:			
	Use Class	Use Description	Floorspace
Proposed	<i>B1(a) with ancillary storage accommodation</i>		2142m ²

OFFICERS' REPORT

Reason for Referral to Committee:

This application is reported to the Development Control Committee as it is major development involving more than 1,000sqm of non-residential floorspace [Clause 3(i)].

1. SITE

- 1.1 The site of the Roundhouse lies between Chalk Farm Road and Regent's Park Road to the north and the Railway Lines to the south. The application site lies within the curtilage of the Roundhouse and comprises of open land measuring some 0.328 ha; the area provides for vehicular deliveries, servicing and parking. The land also houses 13 No. 40 ft. and 5 No. 20 ft. shipping containers which are predominantly used for storage by the Roundhouse, and a refuse compactor.
- 1.2 The Roundhouse is a distinctive circular plan stock brick Grade II* listed building dating from 1846-7, originally built as a goods locomotive turning shed, by the 1860s it was used as a warehouse, as locomotives became too long to be housed there. It was converted into theatre use in the 1960s and then sensitively restored, upgraded and extended at the beginning of the 21st Century to ensure its continued use as an important theatre and concert space. The brick boundary wall retaining the terrace from Chalk Farm Road is grade II listed. Public access to the site is from Chalk Farm Road. Vehicle access and stage door entry gate are situated on Regent's Park Road near to the junction with Chalk Farm Road.
- 1.3 The surrounding area is characterised by a mix of commercial and residential buildings of varying heights. To the southeast of the Roundhouse is Nos. 100/100a Chalk Farm Road a part 5 part 6 storey office building. The Roundhouse Trust occupies No. 100a Chalk Farm Road as offices and other ancillary accommodation. To the southwest is a 5 storey terracotta clad 'Circa' social housing block built in the last 20 years. To the north, directly opposite the site across Regent Park Road is a modern residential block designed in a pastiche Victorian style. To the northeast are other 20th Century storey apartment blocks of average quality on the east side of Chalk Farm Road.
- 1.4 The site lies adjacent to the Regent's Canal Conservation Area which the Roundhouse itself is situated within. The site is located within the Camden Town Centre. The site forms part of Site 33 identified within the Local Development Frameworks Site Allocations Document as a development site.

2. THE PROPOSAL

- 2.1 The Roundhouse requires a new permanent administration building due to the need to vacate its existing offices at 100-100a Chalk Farm Road, where the Roundhouse is a short term lease holder. It has also identified the need to support its growing wide range of activities and events. As such this scheme proposes the erection of a five storey building to provide offices at first to fourth floors, with ancillary storage at ground floor level in connection with the Roundhouse, together with the provision of 14 cycle parking spaces.

- 2.2 The scheme comprises a modular development of customized shipping containers 5-storeys high arranged in two sections. An elevated double stacked element will span the vehicular entrance adjacent to the 'Circa' apartment building No. 210 Regents Park Road. This 2-storey element will join with a 5-storey wing erected on part of the service yard of the Roundhouse. The height of combined assembly (excluding photovoltaics) will be 13.4 m, above the level of the service yard. Twelve of the existing storage containers on the service yard will be consolidated into the new building, there would also be a separate cluster of five containers retained within the yard for storage purposes.
- 2.3 The proposed cycle storage facility would be provided within the curtilage of the site adjacent to the northern boundary.

3. **RELEVANT HISTORY**

- 3.1 The Roundhouse site has an extensive planning history, however there is no history relating to development within this area of the Roundhouse site.
- 3.2 There are two advert hoardings along the northern boundary wall facing Chalk Farm Road which do not have advert consent.

3.3 Relevant history of neighbouring sites

100, 100a and 100b Chalk Farm Road

2013/5403/P - Redevelopment of site to create a mixed-use development comprising 57 market flats (13x1beds, 28x2beds and 16x3beds), 6 affordable flats (3x3 bed rented, 3x1 bed intermediate), new office, retail and restaurant units with associated works to highways and landscaping; following demolition of existing buildings and car park. Application pending consideration, recommended for approval to Development Control Committee 08 May 2014.

2013/5105/P – Prior Approval approved for change of use of ground to fourth floors from office (Class B1) to residential (Class C3) to provide 46 units, comprising of 41x1 bedroom units and 5x2 bedroom units.

155 Regent's Park Road

PEX0101056 - for construction of part four/part five storey building (from Regent's Park Road) plus basement car parking to provide 53 flats (8 x 1 bedroom, 24 x 2 bedroom, 13 x 3 bedroom and 8 x 4 bedroom) plus associated access and landscaping. Planning permission granted 10/04/03.

4. **CONSULTATIONS**

Statutory Consultees

- 4.1 English Heritage – No comment, content for the LPA to determine the application.

Conservation Area Advisory Committee

- 4.2 Regent's Canal CAAC – No reply to date.

Adjoining Occupiers

<i>Number of letters sent</i>	82
<i>Total number of responses received</i>	11
<i>Number of electronic responses</i>	11
<i>Number in support</i>	0
<i>Number of objections</i>	11

- 4.3 A site notice was displayed from 19 February 2014 to 12 March 2014 and a press notice was published in the Ham and High on 20 February 2014.
- 4.4 Ten objections were received from neighbouring residents a summary of which is provided below:
- Loss of light to neighbouring properties at 151, 153 and 155 Regent's Park Road(aka Adelaide Tavern), building does not need to be so large as there is considerable space on site, the Roundhouse does not need so much space and will even be letting some out, the building could be further away from the residential flats.
 - The building does not look aesthetically pleasing, it does not match the high quality of the Roundhouse.
 - The daylight and sunlight assessment fails to address the factors listed in DP26 and likewise fails to follow the full methodology for assessment described in the BRE guidance.
 - No mitigating factors to justify lower values for daylight and sunlight for the neighbouring residential properties.
 - Consideration should be given to the cumulative loss of light since 2005 and the development should be considered in conjunction with the completed Circa Apartment development.
 - In terms of winter sunlight, cumulative loss since 2005 amounts to as much as 0.1times the former value, before 2005, Adelaide Tavern have enjoyed uninterrupted and unobstructed light from the southern skies since 1842 and likewise since its most recent building in 1985.
 - Concern about the noise, in particular the presence of heavy vehicles at unsocial hours directly outside our property, the site currently has lorries frequently arriving very early and late and they insist on keeping their engines running as well as frequently blocking the pavements by the Regent's Park Road entrance.
- 4.5 One objection has also been received by a Chartered Surveyor who was instructed by residents within 151-153 Regent's Park Road to review the daylight and sunlight report, a summary of the response is provided below:
- The 3D model within the report appears limited in extent, it does not include the Roundhouse nor the majority of the adjoining buildings, no account appears to have been taken of the change in land levels.
 - The appropriate reference point should be prior to the construction of the Circa Building.

- All windows to 151-153 serve residential accommodation, the loss as currently assessed are such that they will be discernable to the human eye, a loss of more than 20% is deemed a significant loss. In regard of sunlight, the loss is in excess of the BRE criteria and should also be deemed significant.
- No assessment has been undertaken on the effect of overshadowing, no comment on the effect of outlook.
- Before accepting the technical analysis is correct the model should be verified to demonstrate the extent of modelling and whether the differences in levels have been taken into account.

5. **POLICIES**

5.1 **National Planning Policy Framework 2012**

5.2 **The London Plan 2011**

5.3 **LDF Core Strategy and Development Policies 2010**

LDF Core Strategy

CS1 Distribution of growth

CS3 Other highly accessible areas

CS5 Managing the impact of growth and development

CS8 Promoting a successful and inclusive Camden economy

CS10 Supporting community facilities and services

CS11 Promoting Sustainable and efficient travel

CS13 Tackling climate change through promoting higher environmental standards

CS14 Promoting high Quality Places and Conserving Our Heritage

CS15 Protecting and improving our parks and open spaces & encouraging biodiversity

CS18 Dealing with our waste and encouraging recycling

CS19 Delivering and monitoring the Core Strategy

LDF Development Policies

DP1 Mixed use development

DP13 Employment sites and premises

DP15 Community and leisure uses

DP16 The transport implications of development

DP17 Walking, Cycling and public transport

DP18 Parking standards and limiting the availability of car parking

DP20 Movement of goods and materials

DP21 Development connecting to the highway network

DP22 Promoting Sustainable Design and Construction

DP23 Water

DP24 Securing High Quality Design

DP25 Conserving Camden's Heritage

DP26 Managing the impact of development on occupiers and neighbours

DP29 Improving access

DP31 Provision of, and improvements to public open space and outdoor sport and recreation facilities

5.4 **Supplementary Planning Policies**

Camden Planning Guidance (2011 (as amended 2013))

CPG1 Design

CPG3 Sustainability

CPG5 Town centres, retail and employment

CPG6 Amenity

CPG7 Transport

CPG8 Planning obligations

Regent's Canal Conservation Area Appraisal and Management Strategy (2008)

6. **ASSESSMENT**

6.1 The principal considerations material to the determination of this application are summarised as follows:

- Land Use;
- Conservation and design;
- Impact on neighbour amenity;
- Transport;
- Sustainable design and construction; and
- Other issues.

Land Use

- 6.2 At present the Roundhouse office accommodation is housed within 100-100b Chalk Farm Road, the owners of this building are considering its potential for redevelopment, a GPDO Prior Approval has been approved for the change of use to residential and there is also a current planning application for the redevelopment of the site (2013/5403/P) for housing which is currently under consideration. Therefore the Roundhouse has to vacate their existing office space. As they require permanent office accommodation the Roundhouse are proposing to building a new office building within the confines of their site to accommodate their administrative and support facilities together with some lettable floorspace which they will potentially occupy in the future as the Roundhouse grows, enabling the company to continue to enhance its contributions to the cultural, social and business life of the community.
- 6.3 The building will provide of 2,142sqm of office accommodation, 994sqm will be office accommodation solely for the Roundhouse use, 672sqm will be lettable accommodation which the Roundhouse could also occupy and the remaining 336sqm will form the ground floor level that will be the entrance lobby and reception area together with storage space for use by the Roundhouse.
- 6.4 Within the Site Allocations Plan, the area of the yard is identified as a potential redevelopment site (No.33). The document outlines that the site does not currently realise its development potential and is underutilised. Any redevelopment of the site would of course need to ensure adequate provision is made for servicing of the Roundhouse.

- 6.5 It is noted both within DP1 and the Site Allocations Plan that residential accommodation is a priority land use within the borough and should form part of a mix of uses on site unless exceptional circumstances prevail, such as whether development is essential for the needs of an existing user. With this in mind, the proposed development would result in an uplift of more than 200sqm within a Town Centre and would not provide any residential accommodation, however given the proposal would enable the Roundhouse to have their office accommodation on site allowing the potential for the venue to grow and continue to contribute to the Borough, it is considered that it would be essential for the needs of the existing user and therefore mitigate the requirement to provide residential accommodation on site.
- 6.6 It is also worth noting that the proposed development would occupy 18% of the site identified within the Site Allocations Plan and as such it would not prohibit further development on site in the future.
- 6.7 The majority of the floorspace would be occupied by the Roundhouse, this will be secured by a Section 106 legal agreement. The remaining floorspace would be let out with the intention being that the Roundhouse would occupy the floorspace in around 10 years as the Roundhouse grows. To encourage the growth of creative art, theatre, media, dance, music, circus, installation and new media companies within the local area a clause will be used in the Section 106 to secure that when the office accommodation is let out the Roundhouse look initially to these types of businesses and only if no such business can occupy the space can they consider wider business use. The Section 106 will secure this for a period of 10 years, unless otherwise agreed in writing, as after this period it is anticipated the Roundhouse would occupy the building in its entirety.

Conservation and design

- 6.8 Policies CS14 and DP24 seek to ensure all development is of the highest quality design and considers the character, setting, context and form of neighbouring buildings. Furthermore Policy DP25 seeks to preserve and enhance the character and appearance of Conservation Areas and the Borough's listed buildings.
- 6.9 General guidance on design is clear that Camden is committed to excellence in design and requires all schemes to improve the quality of buildings, landscaping and public spaces and the Council will not approve design which is inappropriate to its context or fails to improve the character of an area.
- 6.10 Paragraph 2.9 of CPG1 places particular emphasis on context and the fact that new development should 'positively enhance the character, history... and nature of existing buildings on the site and other buildings immediately adjacent and in the surrounding area.'
- 6.11 The site of the proposed development is to the west of the Roundhouse building within the open yard area which currently provides for vehicular deliveries and parking. Storage in the form of a single storey of shipping containers occupies the north and western sides of the yard area. The majority of these containers will be

incorporated into the proposed building at ground level. The central part of this area is used for a number of events during the year and this will be preserved as far as possible to retain normal functioning in the long term.

- 6.12 The height of the proposed development has been limited to below the height of the adjacent apartment building on Regent's Park Road. The proposed building would be 2m lower than the adjacent 'Circa' building on Regents Park Road, and 10m lower than the roof peak of the Roundhouse, thereby respecting the scale of neighbouring buildings.
- 6.13 In respect of siting, the rear building line aligns with the 'Circa' building on Regent's Park Road. The front buildings line aligns with the 'Circa' building on Regent's Park Road adjacent to its neighbour and steps forward to address the curve in the road closest to the Roundhouse itself. The new building will also sit comfortably alongside the modern 'Circa' apartment building adjacent on Regents Park Road and will not be out of place with the other 20th Century blocks which surround the site.
- 6.14 The building has been restricted to the west end of the site to avoid distracting from the setting of the Roundhouse as an important landmark. A zone on the site side of the retaining wall to Chalk Farm Road has been avoided to minimise the loading effect of the proposed new building.
- 6.15 Important views of the Roundhouse are available from the northwest on Haverstock Hill. The proposed siting of the development will ensure that these views are uninterrupted with the scheme entirely obscured behind No.155 Regents Park Road. Glimpses of the Roundhouse are available above the balustrade of the pedestrianised Regent's Park Road railway bridge but the new development will only be seen in oblique views with no adverse effect on any significant view of the Grade II * listed building.
- 6.16 The proposed height and separation distance will ensure that the scheme is subservient and deferential to the Roundhouse. Viewed from Chalk Farm Road this means that the development will not impinge on views of the Roundhouse nor affect its setting, that will be preserved.
- 6.17 The container module is expressed throughout the building, and glazing will be set within individual container openings. This, together with the architectural language of frames and nodes, will break down the scale of the building providing interest and legibility at various viewing distances.
- 6.18 The proposed building will present the overall impression of a metal and glass building in keeping with the industrial history, aesthetic and scale of the Roundhouse and the retaining wall. The retention of the container exterior detailing at ground floor level and the western façade will signal the container based approach. The eastern and southern facades will incorporate balconies with glazed balustrades which, together with the glazing to the offices will present a richly layered appearance.

- 6.19 The result will be a contemporary office building that will bring visual interest to the existing yard. The varied character and appearance of the immediate area created by the mix of commercial and residential buildings of varying heights and age will ensure the development will not be strident or dominate the area. The contemporary design and physical distance between it and the listed Roundhouse structure allows the two to read as distinctly different elements and not compete with each other.
- 6.20 In terms of weighing up the public benefit of the proposal, the development will provide essential ancillary facilities for the Roundhouse. This will help secure the future of this important Grade II* listed building and the function it serves in the local community and beyond. The proposed building will enable the Roundhouse to continue to enhance its contributions to the cultural, social and business life of the community.
- 6.21 In addition the local planning authority has noted the Trust's intention to repair the brick wall on Chalk Farm Road as well as the removal of the advertising hoardings which is welcomed. The repair of the wall will be secured via a Section 106 Legal Agreement.
- 6.22 In light of the above, taking into account the context of the site and the proximity of the associated heritage assets, the applicant has given careful consideration to how the proposal will relate to the setting of the Roundhouse, the Chalk Farm Road boundary wall, the adjoining Regents Canal Conservation Area and the wider surroundings. The scheme has been designed and positioned to respond to its site and the heritage assets in the vicinity in a sensitive and contextual way.

Impact on neighbour amenity

6.23 Daylight and Sunlight

The applicant has provided a daylight and sunlight report in support of the proposed development. The report assesses the impact on the 'Circa' apartment building (210 Regent's Park Road), No.151-153 Regent's Park Road, 155 Regent's Park Road and some retail units on the opposite side of Chalk Farm Road.

- 6.24 The assessment within the report has been based on the existing situation taking into account the 'Circa' apartment building in comparison with the proposed situation. A number of residents have raised objection on grounds that the report should assess the cumulative impact of development opposite No.151-153 Regent's Park Road. Neighbours consider the assessment should demonstrate the levels of daylight and sunlight received by neighbouring residents prior to the construction of the 'Circa' apartments (which has been in situ for approximately 8 years) against the existing situation and then the proposed situation. However it is standard practice for daylight and sunlight reports to demonstrate the existing situation against the proposed. It is not considered reasonable to use a vacant site as the baseline when a building has been in place for this length of time. Officers consider using the existing and proposed situations is in this case an acceptable form of assessment to determine if the development would result in harm to the levels of daylight and sunlight received by neighbouring residents.

- 6.25 Objection was also raised in respect of the Roundhouse building not being included within the assessment. The nearest point of the Roundhouse building is the recent extension which is located some 69m from No.151-153 Regent's Park Road at a height of 11m, the central spire of the Roundhouse building is located some 108m from No.151-153 Regent's Park Road at a height of 31m. Given the distance of the Roundhouse from the residential properties within Nos.151-153 Regent's Park Road it is considered the existing Roundhouse building does not impact on the current levels of daylight and sunlight received by the occupiers of No.151-153 Regent's Park Road and as such its inclusion within the 3D model would not impact on the figures provided for the existing VSC and annual probable daylight hours.
- 6.26 On the opposing side of Regent's Park Road is 151-153 Regent's Park Road a block of 8 residential units. Within the report the applicant has assessed the impact on these residents using the VSC test as the internal layouts of the units within 151-153 Regent's Park Road is unknown. Reviewing planning history for the building, it is likely that there are two units per floor with the living/kitchen areas being dual aspect.
- 6.27 In respect of daylight, the report notes that five windows at the ground floor and three to the first floor would receive a VSC of less than 27% and less than 0.8 times their former value as a result of the proposed development. With regard to sunlight, all windows would receive sufficient annual probable sunlight hours, however in winter it would fall short on winter hours at three windows, two to the ground floor and one to the first.
- 6.28 Officers consider that the existing situation is relatively uncommon within Camden, to have residential properties within a Town Centre who have a largely open aspect to the front. It would be common for there to be development either side of the road, such as would be the case were this development to be permitted. The site is noted as a development site, in the site allocations document and it is considered likely that any form of development would impact to a degree on the levels of daylight received by residents on the opposite side of the road. Although the proposed development would not meet the requirements of the BRE guidelines for some of the windows within this elevation, it is important to note the BRE standards are guidance. Paragraph 26.3 of DP26 notes that the Council will take into account the standards recommended by the BRE but it does not bind the development to adhering to said guidance. Of the eight windows that would not meet the 27% VSC or a reduction 0.8 times the existing, the 0.8 reduction is negligible with the highest reduction being 0.69 times the former value. On balance, officers consider, the proposed development would not result in a loss of daylight or sunlight to neighbouring residents to an extent that would result in harm to their amenity.
- 6.29 With regard to the impact on 155 Regent's Park Road, the only window that would be affected would be that at ground floor. The only residential property within this building is located at third floor. As such there would be no impact on residents within this neighbouring building.
- 6.30 In respect of the impact on the 'Circa' apartment building, the furthest point of the proposed building would pass the BRE 45 degree test, as such the development would not result in a loss of light to occupiers of these properties.

6.31 Outlook and Sense of enclosure

The proposed development would be sited on the adjacent side of Regent's Park Road, separated between 12-22m from the occupiers of 151-153 Regent's Park Road it is considered the building would be appropriately sited so as not to impact on the outlook or sense of enclosure experienced by these neighbouring residents.

6.32 Given the siting of the development in relation to the 'Circa' apartment building, the development would not be perceptible by these residential neighbours.

6.33 It is noted that the objection received from the Chartered Surveyor in response to the daylight and sunlight report noted that the report did not address outlook. The daylight and sunlight report does not need to address outlook, there is no test for outlook, as there is for daylight and sunlight, the assessment is based on the individual situation at the application site and the relationship with neighbouring buildings. In this instance it is considered the proposed development would not cause harm to the outlook experienced by any neighbouring residents.

6.34 Privacy

Given the siting of the proposed development within the context of the neighbouring residents it is considered the development would not result in a loss of privacy to neighbouring residents.

Transport

6.35 The site is located within an area with a PTAL of 6a with excellent access to public transport. It is also located within the CPZ CA-F. At present there are 7 disabled car parking spaces and 14 cycle spaces on site.

6.36 Car and cycle parking

The development is not proposing the loss or provision of on site car parking spaces as such no objection is raised in this regard.

6.37 An additional 14 cycle spaces are proposed on site which are to be for the use of people working within the proposed building and Roundhouse, these will not be available to members of the public. For a development of this size, eight cycle spaces would be required, as such this provision is considered acceptable and details of the cycle storage will be secured via condition.

6.38 Servicing

The site will continue to be serviced off street. The Roundhouse has internal site areas which are managed by designated staff members at all times, the proposed development would not alter the access arrangements to the site and a sufficient area within the site would be retained to allow the existing servicing arrangements to remain. Waste and recycled material will be collected and disposed by licensed waste contractors as at present. As such no objection is raised with regard to servicing.

6.39 Construction Management Plan

The proposed building would be pre-fabricated off site and brought on site to be assembled. The Council's transport planner has acknowledged this but it is considered more detail is required to adequately assess the suitability of the construction process. As such a Construction Management Plan will be secured via a Section 106 agreement. The aim of the plan is to minimise disruption to the transport network, pedestrian safety and any disruption from noise, dust and general construction works in accordance with CS5, DP20, DP26 and DP28.

6.40 Pedestrian, Cycling and Environment Improvements

As the office accommodation would be replacement office accommodation from 100-100a Chalk Farm Road, it is not considered necessary to request a contribution in this regard.

Sustainable design and construction

- 6.41 Pursuant to Core Strategy policy CS13 and Development Policies DP22 and DP23 all developments in Camden are required to make the fullest contribution to the mitigation of and adaptation to climate change, to minimise carbon dioxide emissions and contribute to water conservation and sustainable urban drainage.
- 6.42 The proposed development would incorporate a range of carbon-saving passive measures including, high performing building fabric and PV cells to the roof ensuring a reduction in carbon emissions by 40%, in line with the London Plan requirements.
- 6.43 In addition, the proposed building will be highly sustainable in that the building structure will be made from recycled elements already on the site together with re-purposed and upcycled shipping containers. The design of the proposed building makes use of an otherwise unavailable area of the site by bridging across the vehicle access road, using pre-installed piles as foundations.
- 6.44 The applicant has provided a BREEAM pre-assessment to support the application, within the pre-assessment it is noted that the proposal would achieve the BREEAM rating of 'very good' which accords with DP22. In accordance with DP22 to ensure the development delivers this, a design and post-construction assessment are to be secured via S106 legal agreement.

Other Issues

- 6.45 In respect of land contamination, the application site has a historical contaminative legacy potentially affecting the site, as such it is necessary to impose a condition requiring a written programmes of ground investigation for the presence of soil and groundwater contamination and landfill gas to protect future occupiers of the development from the possible presence of ground contamination arising in connection with the previous industrial/storage use of the site.

Mayoral CIL

- 6.46 As the Roundhouse Trust is a charitable organisation it is likely to be exempt from paying the Mayoral CIL.

7. CONCLUSION

- 7.1 In light of the above assessment it is considered that the proposed development would utilise part of one of the Councils identified development sites to enable the Roundhouse to continue to function and grow. In allowing the proposed development the Council would secure improvements to the surrounding site with the removal of the advert hoardings and repair works to the listed wall as such there would be heritage benefits to allowing the proposed development. It is noted there is an impact on the amenity enjoyed by neighbouring residents however this is not considered to significantly harm the quality of their standard of living. As such planning permission is recommended for approval.
- 7.2 Planning Permission is recommended subject to a S106 Legal Agreement covering the following Heads of Terms:-
- The third and fourth floors (994sqm) will be used by the Roundhouse and the first and second floors (672sqm) are to be used either by the Roundhouse or let to a business associated with the work the Roundhouse does, if this is not possible the Roundhouse can consider letting the floorspace to other businesses. The ground floor is to be an entrance/reception area together with 261sqm storage space to be used by the Roundhouse, the clause will also set out that the storage space is to be used by the Roundhouse and its operations;
 - Construction Management Plan;
 - Design stage and post construction sustainability plan;
 - Repair work to the listed wall which bounds the site.
- 7.3 In the event that the S106 Legal Agreement referred to above has not been completed within 13 weeks of the date of the registration of the application, the Development Control Service Manager be given authority to refuse planning permission for the following reasons:-
1. The proposed development, in the absence of a legal agreement to restrict use of the office floorspace to the existing user, that being the Roundhouse, and a proportion to be sub-let for a restricted period of time to appropriate businesses, would fail to provide mixed use development contrary to policy DP1 of the London Borough of Camden Local Development Framework Development Policies 2010.
 2. The proposed development, in the absence of a legal agreement to secure a construction management plan (in the event that the Council and Transport for London were to find the construction arrangements acceptable in other respects), would be likely to give rise to conflicts with other road users, and be detrimental to the amenities of the area generally, contrary to policies CS5 (Managing the impact of growth and development), CS19 (Delivering and monitoring the Core Strategy), DP21 (Development connecting to the highway network), DP26 (Managing the impact of development on occupiers and neighbours) and DP28 (Noise and vibration) of the London Borough of Camden Core Strategy and Development Policies 2010.

3. The proposed development, in the absence of a legal agreement requiring a Sustainability Plan, would fail to be sustainable in its use of resources, contrary to policies CS13 (Tackling climate change) and CS19 (Delivering and monitoring the Core Strategy) of the London Borough of Camden Local Development Framework Core Strategy, DP22 (Sustainable construction), and DP23 (Water) of the London Borough of Camden Local Development Framework Development Policies.
4. The proposed development, in the absence of a legal agreement to secure repair works to the listed boundary wall, would fail to preserve or enhance the setting of the listed building or the character and appearance of the conservation area generally, contrary to policies CS14 (Promoting high quality places and conserving our heritage) of the London Borough of Camden Local Development Framework Core Strategy and DP24 (Securing high quality design) and DP25 (Conserving Camden's heritage) of the London Borough of Camden Core Strategy and Development Policies 2010.

8. LEGAL COMMENTS

- 8.1 Members are referred to the note from the Legal Division at the start of the Agenda.

Condition(s) and Reason(s):

- 1 The development hereby permitted must be begun not later than the end of three years from the date of this permission.

Reason: In order to comply with the provisions of Section 91 of the Town and Country Planning Act 1990 (as amended).

- 2 The development hereby permitted shall be carried out in accordance with the following approved plans: USM RAB 000 Rev R1, USM RAB 001, USM RAB 002, USM RAB 005, USM RAB 006, USM RAB 007, USM RAB 008, USM RAB 009, USM RAB 010, USM RAB 011, USM RAB 012, USM RAB 014, USM RAB 015, Energy Statement, Daylight and Sunlight Assessment by Keeping Blue dated January 2014, BREEAM Pre-Assessment by Carbon Plan dated January 2014 and Transport Statement by Paul Mew Associates dated January 2014.

Reason: For the avoidance of doubt and in the interest of proper planning.

- 3 Detailed drawings, or samples of materials as appropriate, in respect of the following, shall be submitted to and approved in writing by the local planning authority before the relevant part of the work is begun:

a) Details including sections at 1:10 of all windows (including jambs, head and cill), ventilation grills, external doors and gates;

b) Manufacturer's specification details of all facing materials (to be submitted to the Local Planning Authority) and samples of those materials (to be provided on site).

The relevant part of the works shall be carried out in accordance with the details thus approved and all approved samples shall be retained on site during the course of the works.

Reason: To safeguard the appearance of the premises and the character of the immediate area in accordance with the requirements of policy CS14 of the London Borough of Camden Local Development Framework Core Strategy and policy DP24 and DP25 of the London Borough of Camden Local Development Framework Development Policies.

- 4 Before the development commences, details of secure and covered cycle storage area for 14 cycles shall be submitted to and approved by the local planning authority in writing. The approved facility shall thereafter be provided in its entirety prior to the first occupation of any of the new units, and thereafter permanently retained thereafter.

Reason: To ensure the development provides adequate cycle parking facilities in accordance with the requirements of policy CS11 of the London Borough of Camden Local Development Framework Core Strategy and policy DP17 of the London Borough of Camden Local Development Framework Development Policies.

- 5 At least 28 days before development commences:
 - (a) a written programme of ground investigation for the presence of soil and groundwater contamination and landfill gas shall be submitted to and approved by the local planning authority; and
 - (b) following the approval detailed in paragraph (a), an investigation shall be carried out in accordance with the approved programme and the results and a written scheme of remediation measures [if necessary] shall be submitted to and approved by the local planning authority.The remediation measures shall be implemented strictly in accordance with the approved scheme and a written report detailing the remediation shall be submitted to and approved by the local planning authority prior to occupation.

Reason: To protect future occupiers of the development from the possible presence of ground contamination arising in connection with the previous industrial/storage use of the site in accordance with policy CS5 of the London Borough of Camden Local Development Framework Core Strategy and policy DP26 of the London Borough of Camden Local Development Framework Development Policies.

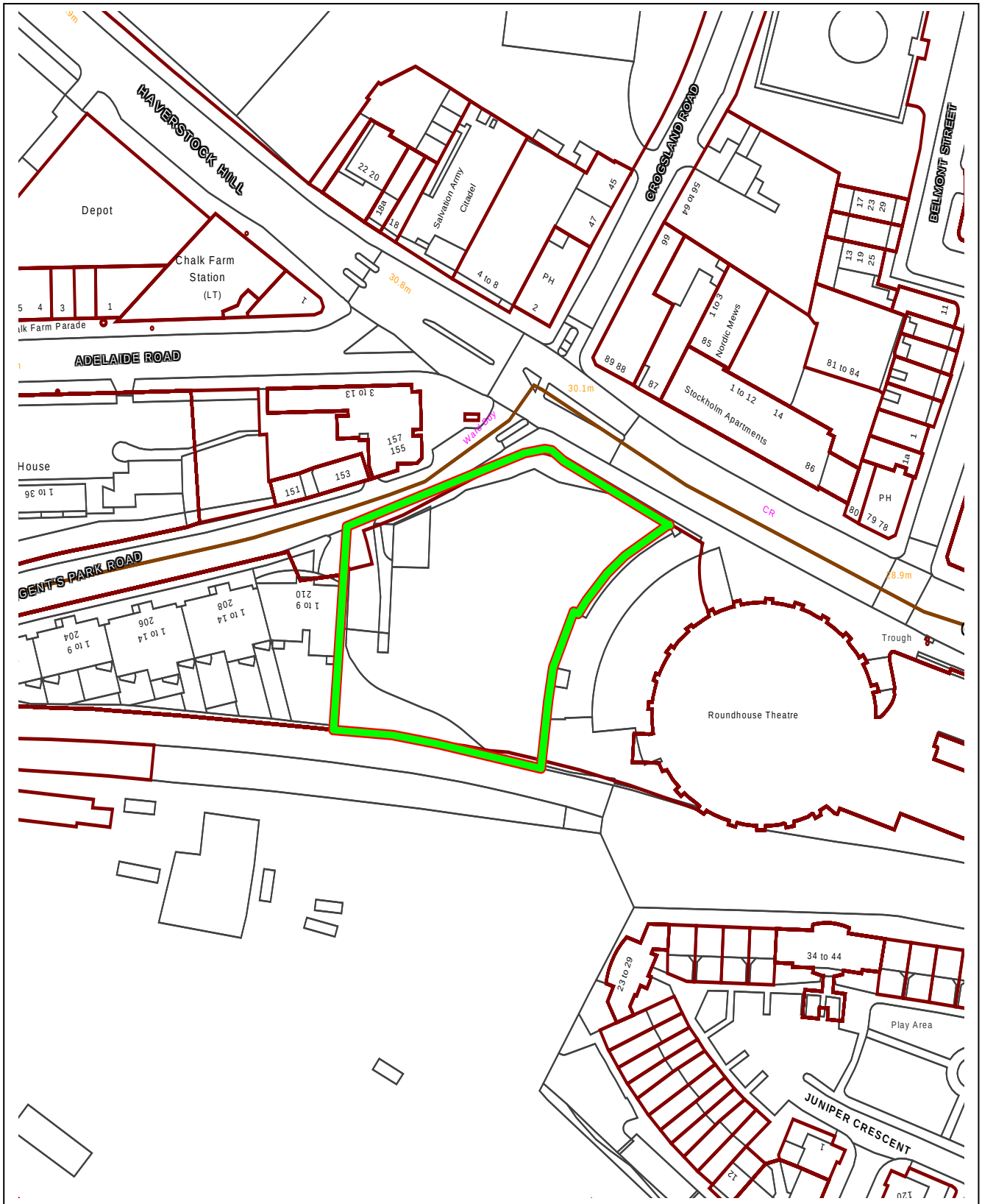
Informative(s):

- 1 Noise from demolition and construction works is subject to control under the Control of Pollution Act 1974. You must carry out any building works that can be heard at the boundary of the site only between 08.00 and 18.00 hours Monday to Friday and 08.00 to 13.00 on Saturday and not at all on Sundays and Public Holidays. You are advised to consult the Council's Environmental Health Service, Camden Town Hall, Argyle Street, WC1H 8EQ (Tel. No. 020 7974 2090 or by email env.health@camden.gov.uk or on the website

www.camden.gov.uk/pollution) or seek prior approval under Section 61 of the Act if you anticipate any difficulty in carrying out construction other than within the hours stated above.

- 2 Your attention is drawn to the fact that there is a separate legal agreement with the Council which relates to the development for which this permission is granted. Information/drawings relating to the discharge of matters covered by the Heads of Terms of the legal agreement should be marked for the attention of the Planning Obligations Officer, Sites Team, Camden Town Hall, Argyle Street, WC1H 8EQ.
- 3 Your proposals may be subject to control under the Building Regulations and/or the London Buildings Acts which cover aspects including fire and emergency escape, access and facilities for people with disabilities and sound insulation between dwellings. You are advised to consult the Council's Building Control Service, Camden Town Hall, Argyle Street WC1H 8EQ, (tel: 020-7974 2363).
- 4 As you are aware the Council's had been taking action across the Borough to remove large advertisement hoardings which are considered to have a detrimental impact on the character and appearance of areas. It is noted that you have set out your commitment as part of this application to remove the advertisement hoardings which are currently located to the northern boundary wall facing Chalk Farm Road this is welcomed by the Council.
- 5 The Mayor of London introduced a Community Infrastructure Levy (CIL) to help pay for Crossrail on 1st April 2012. Any permission granted after this time which adds more than 100sqm of new floorspace or a new dwelling will need to pay this CIL. It will be collected by Camden on behalf of the Mayor of London. Camden will be sending out liability notices setting out how much CIL will need to be paid if an affected planning application is implemented and who will be liable.

As the Roundhouse is a charitable organisation it may be eligible for an exemption, you must contact the CIL team (cil@camden.gov.uk) to attain the relevant forms to apply for an exemption prior to commencement of development.



Application No: 2014/0853/P

**The Roundhouse
Chalk Farm Road
London NW1 8EH**

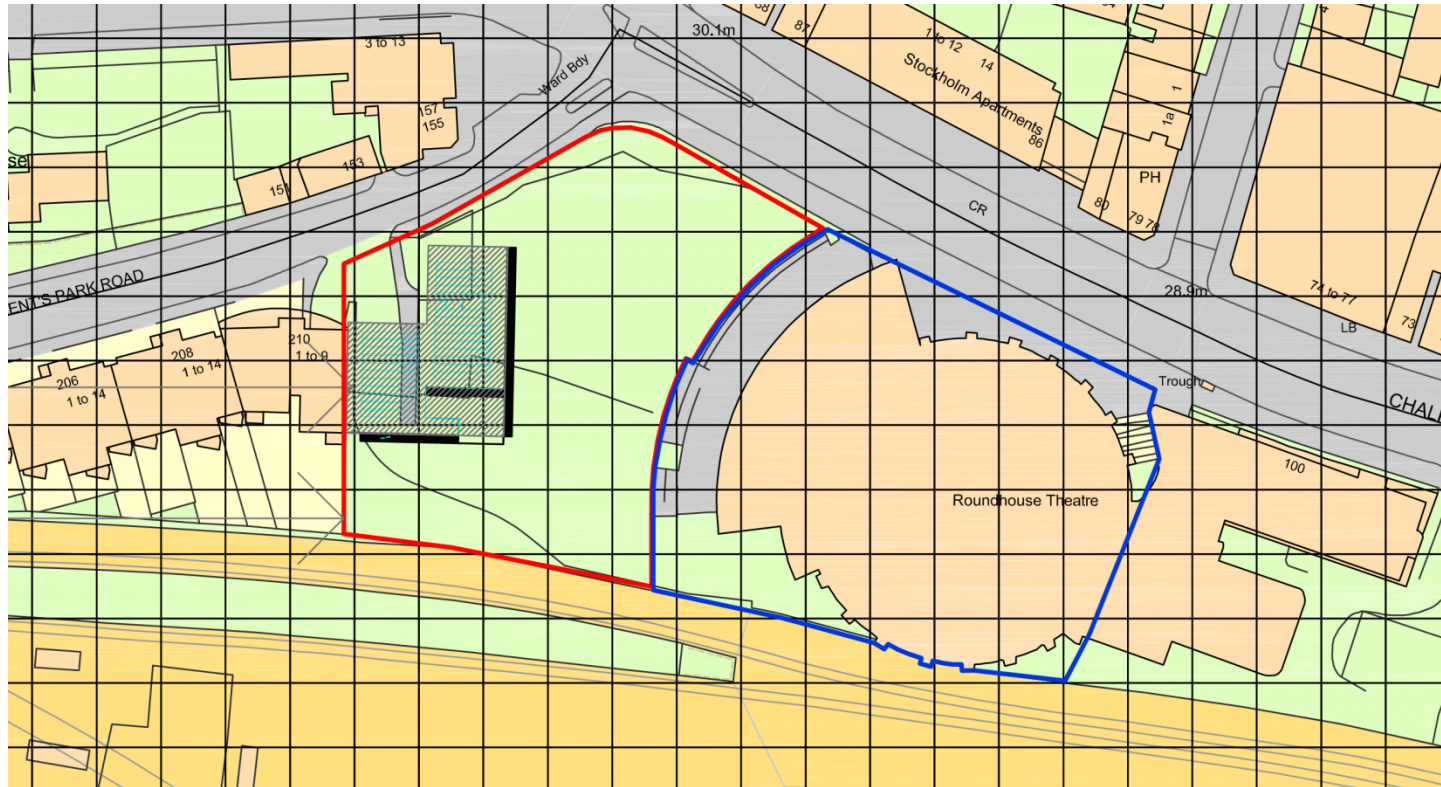
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1:1250**

**Date:
25-Apr-14**

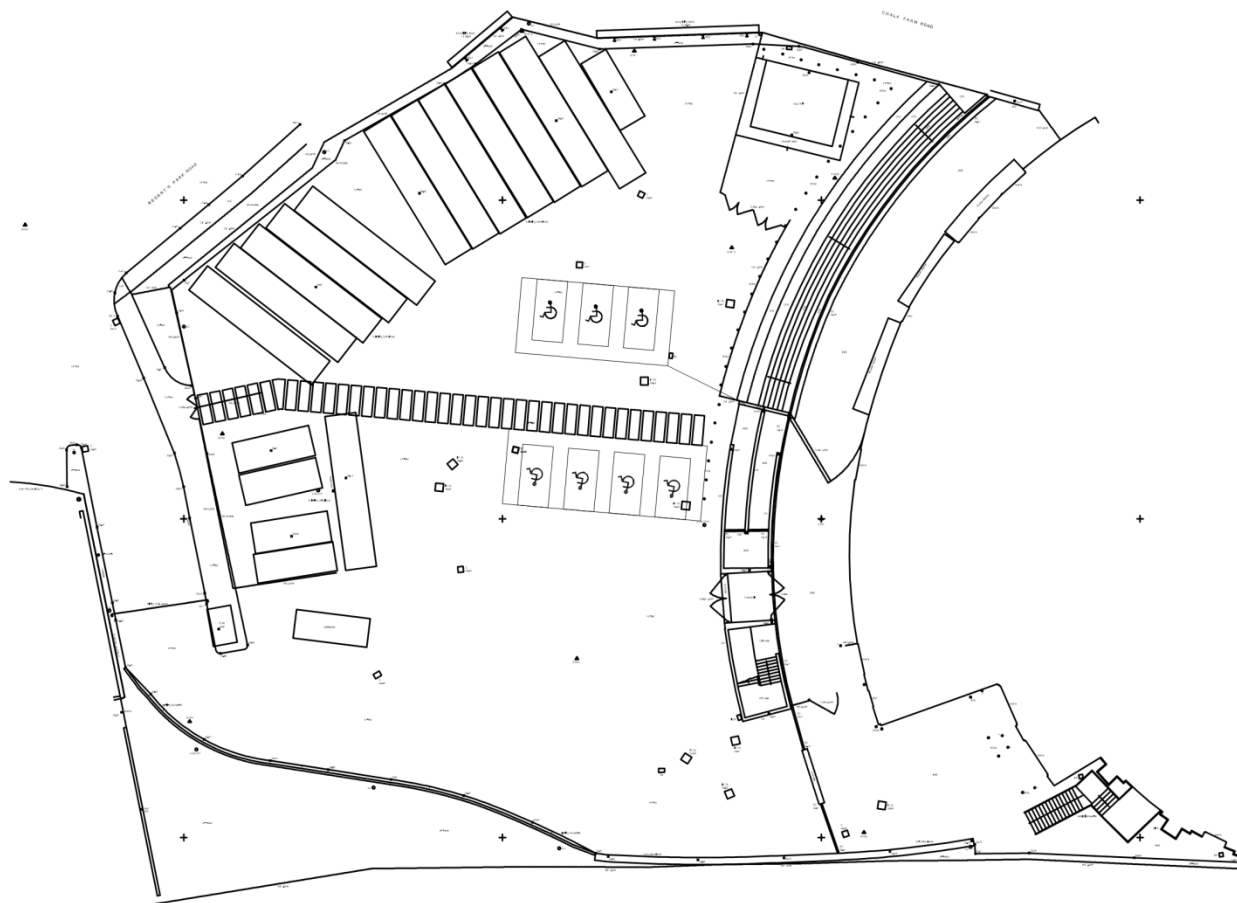


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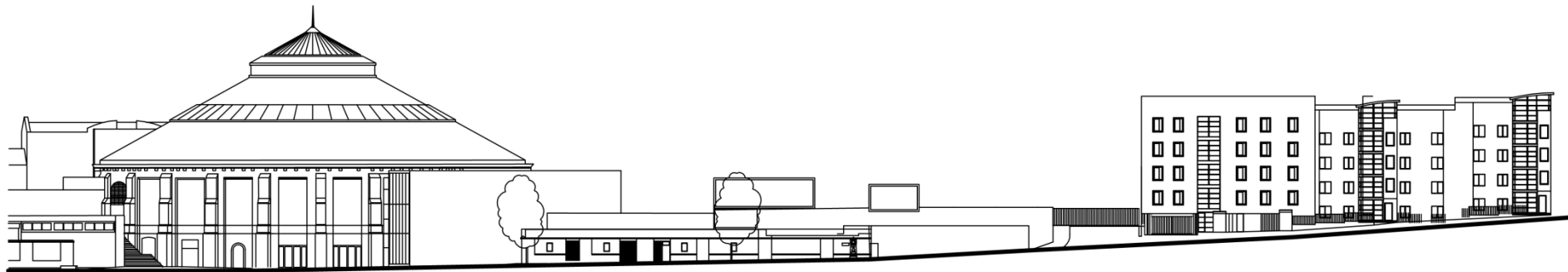
The Roundhouse OS Map



Existing site plan



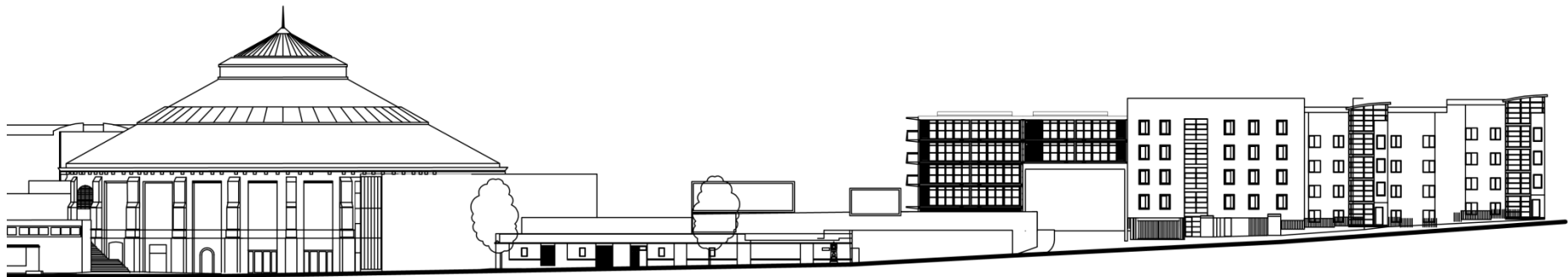
Existing and proposed north elevations



Roundhouse

Chalk Farm Road

Regents Park Road



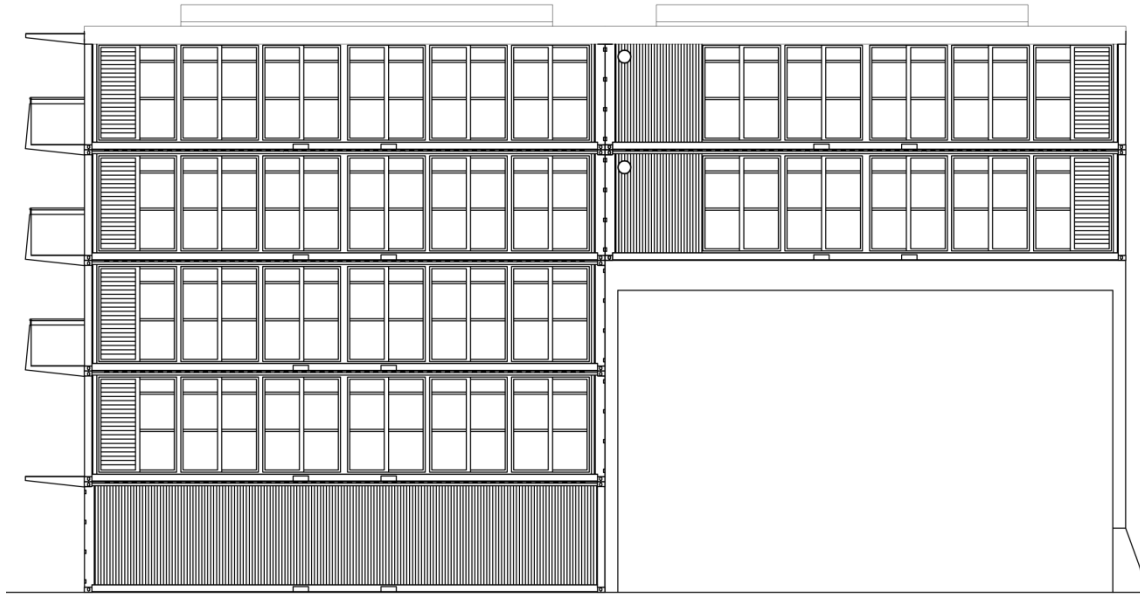
Roundhouse

Chalk Farm Road

Proposed Administration Building

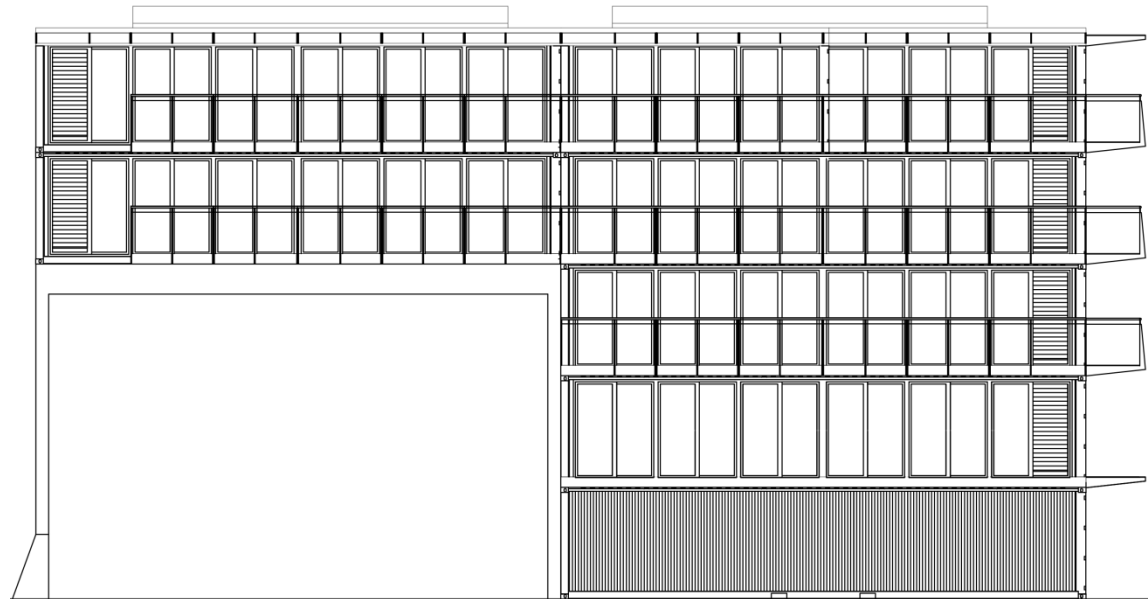
Regents Park Road

Proposed Elevations

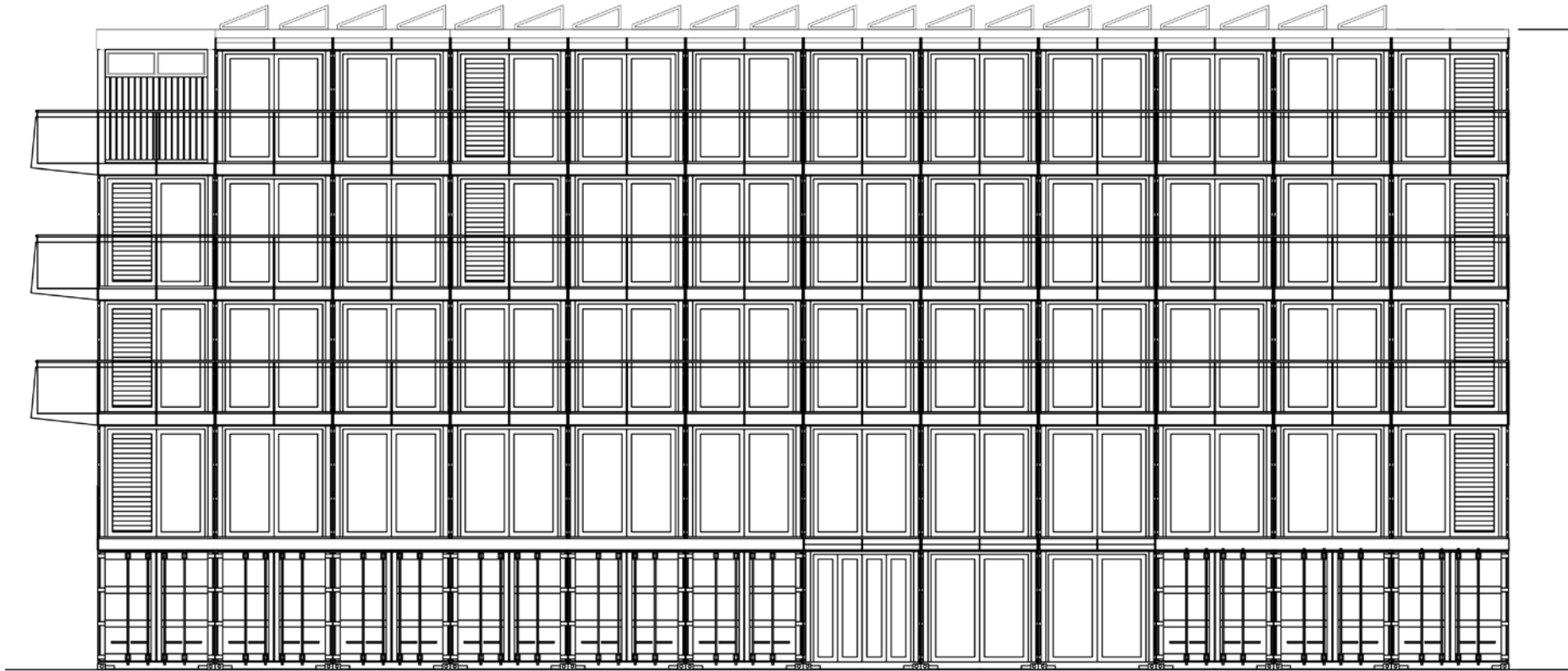


North elevation

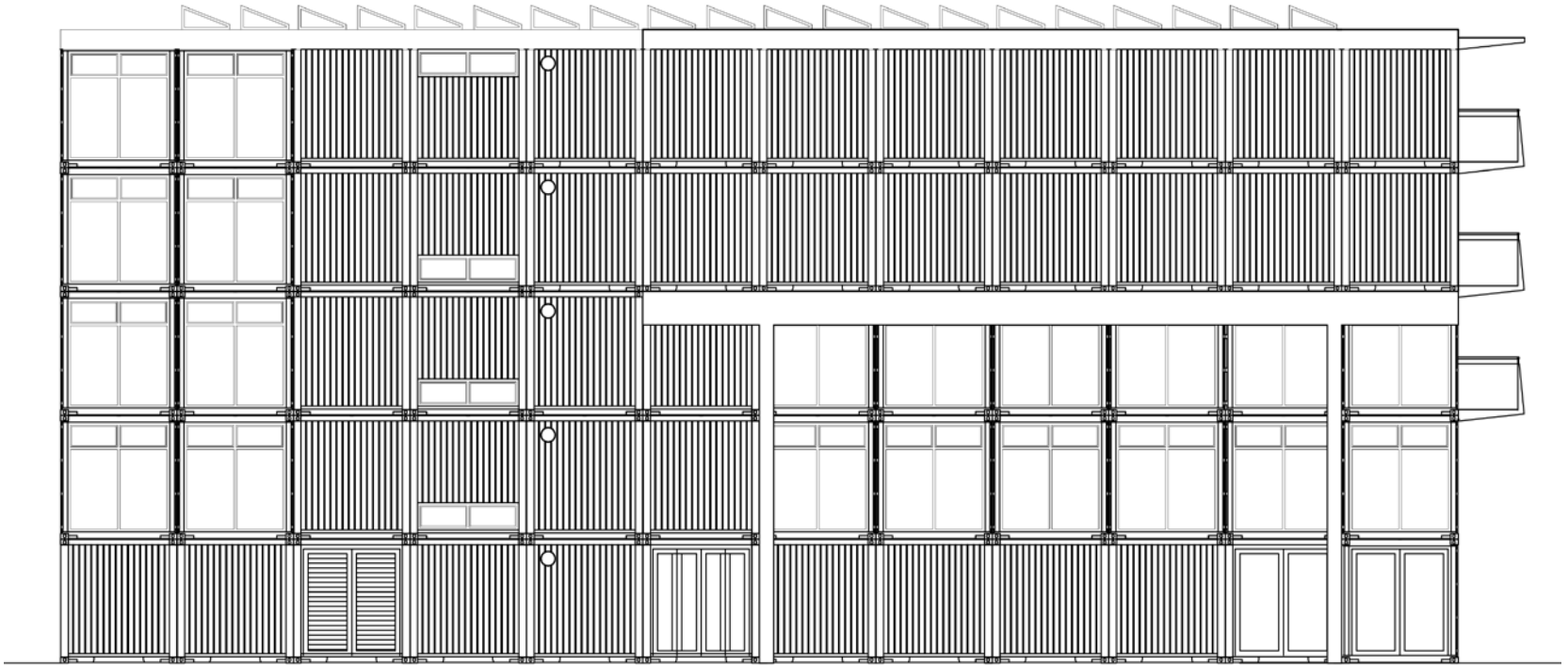
South elevation



Proposed east elevation



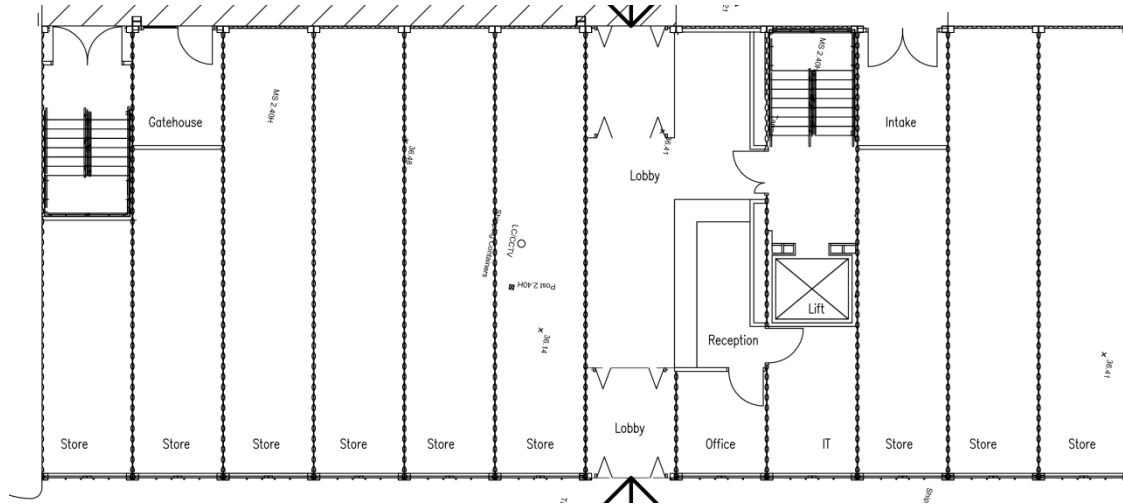
Proposed west elevation



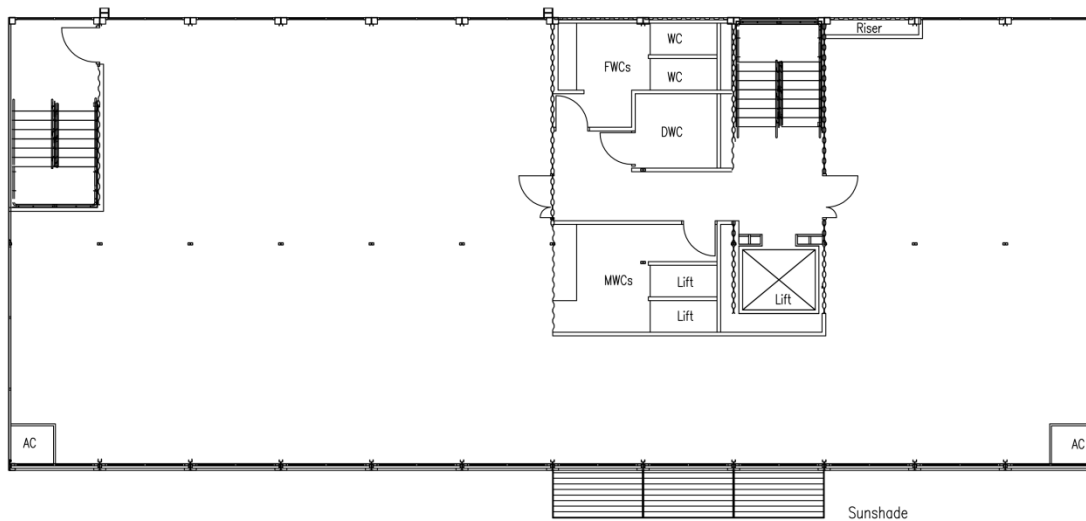
Proposed CGI



Proposed floorplans

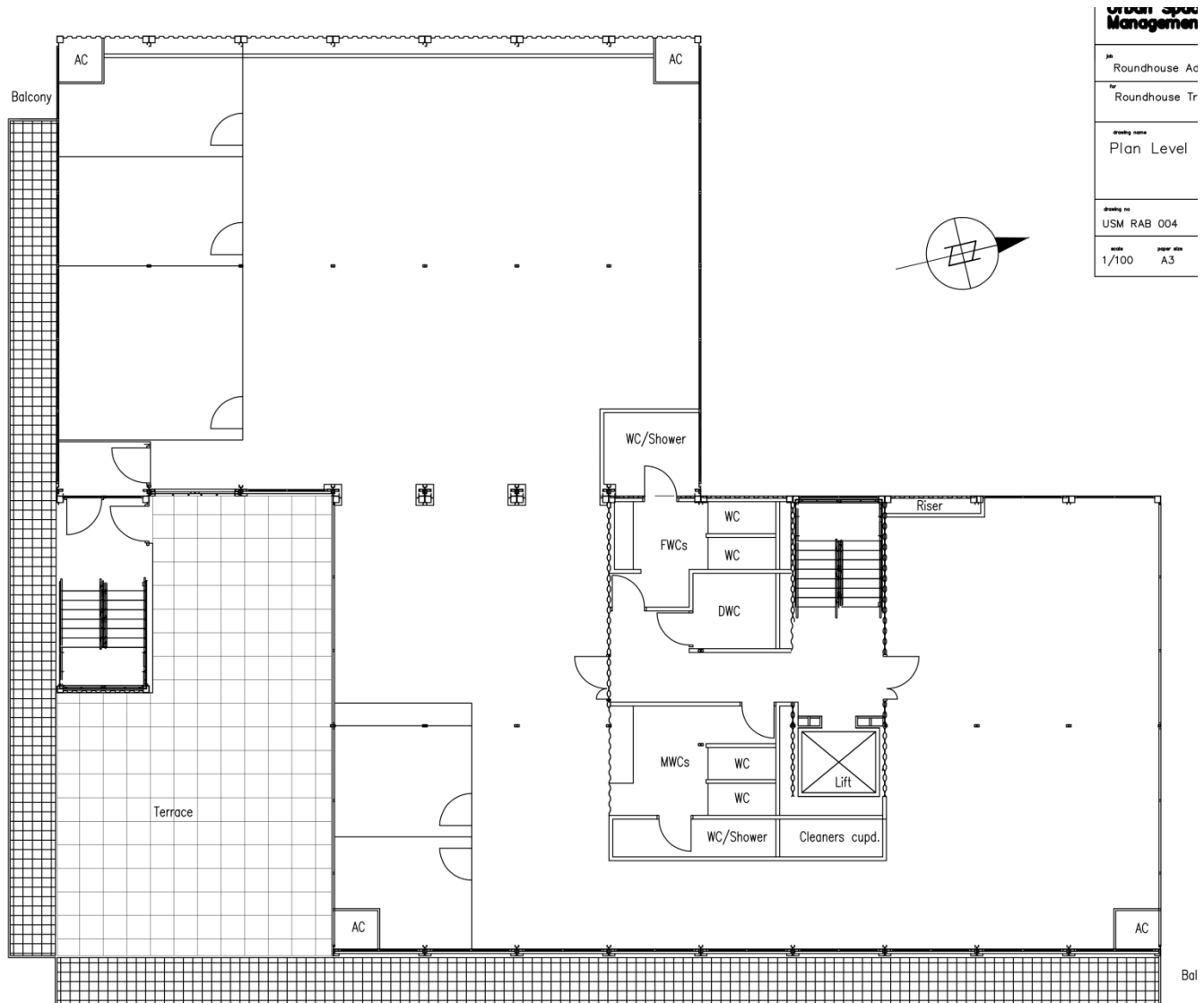


Ground Floor



First Floor

Proposed fourth floor



Proposed roofplan

